

STATE OF INDIANA

SS:

COUNTY OF VANDERBURGH

IN THE VANDERBURGH SUPERIOR COURT

IN RE THE GUARDIANSHIP OF
LEONARDO ESLINGER
JONAH ESLINGER
SERENA ESLINGER,

CAUSE NO. 82D04-2305-GU-000250
82D04-2305 GU-000251
82D04-2305-GU-000252

KRISTI HELD,
SHERRY R. ESLINGER,
PETITIONERS,

And

JOSEPH ESLINGER
SARA ESLINGER
Respondents

GUARDIAN AD LITEM REPORT

COMES now Jillian Kratochvil as the Guardian Ad Litem and submits her report herein:

This GAL spoke with the following individuals for the drafting of this report:

Joseph Eslinger (Father)
Sherry Eslinger (paternal grandmother)
Kristi Held (paternal great aunt)
Madison Eslinger (Father's sister)
David Whitehead Vanderburgh County Deputy Prosecutor

The following records were reviewed:

Vanderburgh County DCS records
Text messages between Sherry Eslinger and Father
Photographs of children
Interrogatories from Sara Eslinger
Medicaid benefits

BACKGROUND:

Father and Sara Eslinger (Mother) have three (3) minor children, Leonardo Mason Eslinger (11/22/2018), Serena Marie Grace Eslinger (12/22/2020), Jonah Eslinger (02/27/2023). Paternal Grandmother initially filed a Petition for Guardianship of Leonardo Eslinger on April 12, 2019 (Cause No. 82D04-1904-GU-000226). Father and Mother married May 22, 2019. Grandmother dismissed her Petition for Guardianship on May 23, 2019.

The parties lived together as Husband and wife until Summer of 2022. Mother was the Children's primary caregiver with Father exercising inconsistent parenting time until Thanksgiving of 2022 at which time Father became the Children's primary caregiver.

Beginning November 2022 ATF officers began investigating Mother related to her attempts to hire someone to murder Father and his girlfriend. Federal charges were filed against Mother on February 17, 2023. Mother was also charged with Burglary on February 17, 2023. Father and his girlfriend are victims in both matters.

Father filed his Petition for Dissolution of Marriage on March 3, 2023. At the time of the filing, Mother was being held on both Federal and State criminal charges. The parties' youngest child was born while Mother was in federal custody. Initially, the Child was placed with Grandmother at Mother's request. Father requested care of Jonah from his mother. Father filed a Motion for Emergency Hearing and Emergency Change of Custody and Suspension of Parenting Time on March 3, 2023, seeking custody of all three children. Father's Emergency Motion was granted on March 10, 2023, and the children, including Jonah, were ordered to be placed with Father.

On March 17, 2023, sFather was awarded sole legal and physical custody of the children. The Paternal Great Aunt orally moved to intervene in the dissolution matter. The Motion to Intervene was denied. It was further ordered that Father's address was to always remain confidential.

Grandmother and Great Aunt filed their Motion to Intervene and Set Aside on May 4, 2023. Father filed his Motion to Dismiss Petition to Intervene on May 10, 2023 alleging that Grandmother illegal withheld Jonah from Father. Grandmother and Great Aunt filed Motion for Injunction and Answer to Motion to Dismiss on May 11, 2023. All matters are pending.

Grandmother and Great Aunt filed their Petitions for Guardianship of the Children on May 4, 2023. The final hearing is scheduled for October 5, 2023.

Mother subsequently pled guilty in the Burglary matter and will was sentenced to the Department of Corrections for a period of five (5) years – two (2) to be executed with the remaining three (3) suspended to probation. The Federal case is still pending.

JOSEPH ESLINGER:

The Father is 26 years old, born in February 1997. He graduated from Castle High School. He attended one year at University of Southern Indiana ("USI") for Computer science.

Father has asthma and ADHD but does not have any other mental or medical health diagnoses. Father does not have a criminal history. He has some small claims matters. He still has one active small claims matter.

Father's girlfriend, Laura Diana Lopez ("Diana"), does not have any criminal or civil matters. Father reports that she does not have any mental or medical health diagnoses.

Father had a series of employers in Evansville: SRG Global, beginning of 2019 until April of 2019; Berry Global, April 2019 – Fall of 2021 (he was terminated for attendance issues); Lewis Bakeries, January 2022 – November 2022. Father is now employed at Midwest Foundation working concrete construction for commercial and residential properties. He has been employed since May 31, 2023. His typical hours are 7:00am – 5:00pm Monday through Friday. He works Saturdays as needed. He earns \$20 per hour.

Joseph stated that he never transported vehicles. He acknowledged that he told Sherry that it was occurring, but it was a joke.

He relocated out of Indiana on April 24, 2023. Due to the Court's existing Order, this GAL did not include references to or the actual city, state where Father resides.

He lives in a three-bedroom, two-bathroom trailer with his three children and Diana. He pays rent for the lot but owns the mobile home.

In the course of the GAL's investigation, Father obtained Medicaid benefits for the Children, enrolled the Children on a waitlist for the elementary school nearest him, and was actively working to obtain a pediatrician. He had just received confirmation of their Medicaid benefits the day of his second interview with the GAL. He stated the Children previously saw Dr. Jill Smith at St. Vincent/Ascension when they were in Indiana.

Father reported that his relationship with Sherry and Kristi is non-existent. He does not maintain contact with any family members. He stopped contact with Sherry due to her continuing relationship with Sara (including supporting her throughout the murder for hire criminal charges), continuous DCS reports, and recent allegations of sexual abuse against Madison.

Joseph stated this is the second time Sherry has attempted to obtain guardianship, the first time being a guardianship over Leo. Joseph stated at the time he was going to live in a house provided by his father; however, there was an incident with his family that involved law

enforcement. The housing fell through. Sherry then filed the guardianship due to lack of housing.

During his marriage to Sara, Sherry would help with the Children. This sometimes-included overnights while working third shift. However, this stopped when Sherry would allow the children around paternal grandfather. Joseph alleged that his oldest sister Brooke and father were in a long-term sexual relationship. He stated he suspected they were in a relationship, but viewed explicit text messages they sent each other. He does not want the Children around his father.

He stated Sherry would do what she wanted when she had the Children. She also demanded time, threatening to file a grandparents' visitation if he did not allow contact how and when she requested.

He described Kristi and Sherry as manipulative and controlling. He stated that despite the murder for hire charges, and Sara breaking into his residence while he had the Children, both Kristi and Sherry maintained regular contact with her. They also allowed Sara to contact the Children while they were with Sherry.

Joseph stated his family made multiple DCS reports against him, alleging sexual abuse, drug use (he screened negative three times), and general neglect of the Children. He was uncertain if the reports were substantiated, but no cases were filed. Joseph stated the relationship further deteriorated when Sherry kept Jonah after he was born, requiring him to file an emergency petition to obtain custody.

Joseph stated he spoke with Detective Brandon Deig. He believed the investigation was concluded.

The GAL was able to perform a virtual/zoom walkthrough of Father's residence. This included a walkthrough of every bedroom, bathroom, kitchen, living room, confirming working utilities, viewing the contents of the refrigerator and communication with the three children.

KRISTI HELD

Kristi is the Father's aunt. Kristi is co-petitioner in the pending Guardianship matter. Kristi is employed through the Warrick County School Corporation as a special education teacher. She has been employed through Warrick since 2006. She has a master's degree in administration. She resides at 5555 Lakeside Dr., Newburgh, IN. She lives with her Husband, Charles Held. She and her husband have been married since 1989.

She recently underwent knee replacement surgery and gastric bypass does not have any current health issues that would prevent her from providing care for the children.

Kristi recently had a knee replacement and gastric bypass. She is currently prescribed pain medication related to her knee surgery, but that is solely for recovery. She is prescribed Locenapro for blood pressure, Potassium related to her gastric bypass surgery.

She is diagnosed with Major Depressive Disorder, for which she takes Cymbalta. She also has a diagnosis for PTSD related to childhood sexual abuse. Her primary physician is Dr. Uloth through Deaconess. She reports no medical or mental health diagnosis that prevent her from caring for the Children.

She reported that she has no criminal history or DCS history. She reported she has had collection matters filed against her related to prior medical issues. In reviewing Odyssey, she has approximately fifteen (15) small claims cases filed against her, beginning in 1994 and continuing through June of 2023. Additionally, she had two criminal misdemeanor matters filed against her, both for check deception. The first charge was dismissed through successful completion of a pre-trial diversion. The second matter was dismissed outright.

She and her sister (Sherrie Eslinger) were prompted to file the Guardianship when the family court denied her oral motion to intervene into the pending dissolution matter. She reported she had concerns for the Children's physical safety in Father's care, his financial stability, housing, mental health, and an inability to appropriately care for the Children. She last saw the Children in March of 2023. Her last contact with Father was April of 2023.

Kristi stated that she learned Joseph sexually assaulted his two younger sisters, Chloe Eslinger (who goes by "Scott") and Madison Eslinger, approximately 15 years ago. According to Kristi, the abuse occurred over a 7–8-year period. Kristi reported the abuse began when the sisters were approximately four (4) years of age. This alleged abuse was disclosed by Madison in December of 2022 by way of Madison's counseling. After her initial disclosure, Chloe informed Kristi and Sherri of her own abuse. Kristi reports that Chloe was only able to recall one incident from when she was four (4) years of age. Chloe is currently twenty-one (21) years of age. Chloe is also transitioning gender from female to male. For purposes of clarification, this GAL continues to reference this sister as Chloe.

A DCS report was filed against Father on March 14, 2023, regarding the allegations of sexual abuse. The matter was also referred to the Indiana State Police. Kristi reported that Madison participated in a Holly's House Interview. However, due to issues with the timing of the alleged abuse, the prosecutor could not determine if the matter should be filed as a juvenile matter or adult matter. As of the date of this report, no criminal matter(s) have been filed against Joseph Eslinger. Kristi believes Father may be perpetrating sexual acts against the Children.

Kristi also reported concern regarding Father's level of care for the Children. During Father's relationship with Mother, he provided limited care for the two older Children. Father frequently left the Children with Mother while he engaged in his relationship with his current girlfriend Diana Lopez. Father only became involved with the Children beginning Thanksgiving of 2022, at

which point in time he tricked the Mother into giving him the Children. After that, Father withheld the Children from Mother.

Kristi reported that Father does not maintain consistent employment. She is unaware of his current financial situation; however, when he lived in Evansville, he regularly changed or lost employment. This lack of consistent income resulted in inconsistent housing.

Father moved from rental to rental, along with various stays at One Life/Studio life Apartment – an extended stay motel. Father sought assistance from his parents after losing his job; briefly living in a house provided by his father, John Eslinger. However, he left the house in a state of disrepair. Father informed her that he planned to relocate every four months, insisting he be close to a border. He indicated he wanted the ability to leave the country with Children at any time. Kristi and Sherri are currently unaware of Father's address. The Family Court ordered his address to remain confidential.

Kristi alleged that Father failed to appropriately care for the Children or see to their needs. She referenced that Leo, the oldest Child, failed to meet important milestones. Kristi performed a screen of Leo and determined that he was behind developmentally. She does not believe the Children were kept up to date with medical appointments. Father refused to enroll Leo in any schooling and failed to put him into First Steps.

Kristi stated Father admitted that he is violent when drinking. She indicated that Father has a drinking problem. This led to conflict in his co-parenting relationship with Mother.

Kristi was aware of Mother's criminal charges and recent conviction. She maintains contact with Mother and believes she should maintain contact with the Children, to the extent possible. She reported that she was upset with Mother for her behavior, but believed Father intentionally kept Mother mentally ill. She alleged Father prevented Mother from seeking appropriate mental health treatment. Father told Kristi that he whipped Mother with a phone cord and physically abused Mother during their relationship.

Kristi reported that Father admitted to her that he likes to regularly lie and make up stories to cause people problems.

Kristi also reported concern with Father's girlfriend, Laura Diane Lopez. She stated that she and Sherri initially met Diana at 5 Guys with Father. They later received a photograph from Father, showing the Children with Diana and her children. However, the individual reported to be Diana was not the female they met. Kristi reported concerns that Father is involved in sex trafficking and will involve the Children. Should the Guardianship be granted, she does not want Father to have any parenting time or contact with the Children until he undergoes sex offender rehabilitation.

SHERRY ESLINGER

Sherry is the Father's mother. She is co-Petitioner in the pending Guardianship matter. She works from home selling websites. She lives at 9300 Farmington Dr., Evansville, IN with her daughter Chloe (going by Scott 21) and Madison (16). She is married but has been separated from her Husband approximately eight (8) years. She filed for divorce in 2014, it was subsequently dismissed in 2018. She has an amicable relationship with her Husband, but he is not involved in the guardianship proceedings. She reported that she does not have any DCS or criminal history; however, she does have one former small claims matter filed against her.

She does not have any medical or mental health issues that hinder her from caring for the Children.

She and Kristi filed guardianship due to concerns for the safety of the Children. She last saw the Children in March of 2023. Her last contact with Father was April of 2023.

This is the second Guardianship filed by Sherry. She previously sought a guardianship over Leo due to worry he was not being appropriately cared for. She indicated this was dismissed due to the Mother and Father marrying.

Sherry stated that multiple reports to DCS have been filed against Father, including reports related to his sexual abuse of his sisters. In December of 2022, Madison reported that Father sexually abused her for 7-8 years (from when she was four (4) until Father moved out to attend college at USI). Sherry reported Madison disclosed sexual abuse in counseling. Madison was hesitant to participate in a Holly's House interview, initially being talked out of the interview by her Father. She eventually went to Holly's House for an interview. She indicated the Vanderburgh County Prosecutor needs a new Holly's House interview to file any criminal matters against Father. Madison has not been re-interviewed.

Sherry indicated that when Father lived in Evansville, he moved frequently. He never maintained stable or appropriate housing. Her husband provided him a home. She reported that Father left Sara in a wrecked home, leaving trash, debris, holes in the walls, marks on the walls, rats, etc. She worried about Father's ability to provide a clean and safe home for the Children.

When Father and Mother separated, Father lied to Mother about his infidelity. Sherry indicated that Father would play games with Mother. When he left her, he refused to provide any financial support, requiring Sherry to purchase groceries, pay utility bills, etc. Father infrequently visited the Children. Sherry watched the Children almost every weekend and evenings throughout the week.

Sherry understands Mother's criminal charges and recent conviction, including that Father was the listed victim of both. She maintains contact with Mother, including putting money in her

commissary account. She acknowledged that Sara is extremely mentally ill; however, she agreed believed Father intentionally kept her ill.

Father eventually got the Children Thanksgiving of 2022 when Mother's electricity was shut off. He would then put significant hurdles up to ensure Mother could not see the Children, such as dictating she could only see the Children if she moved out, that she couldn't see the children at the motel she rented, etc.

After Father had the Children in his care, Sherry continued to provide childcare for Father. Father was employed at Lewis Bakery, but he informed Sherry that he was transporting cars from Texas to Miami with Diana for additional money. Sherry expressed concerns that he was involved in drug or sex trafficking at the time.

Sherry indicated she had significant concerns with Father's level of care for the Children. She stated he refused to send Leo to any type of daycare and/or school. He failed to take the Children to their annual checkups with Dr. Jill Smith, including the baby. Father gave Leo adult Tylenol when he was sick. Father locked Leo in his room for hours until Leo cleaned his room. Father locked food away from the Children. When he lived at the Timbers Apartment in Evansville, IN, a neighbor reported Father to DCS due to lack of supervision. Specifically, the two older children were playing unsupervised on the third-floor outdoor balcony in January without appropriate clothing. He sleeps during his parenting time, failing to wake up to care for the Children. She stated that Father has repeatedly threatened to take the Children and run.

Sherry stated she does not believe Jonah is Father's biological child. Jonah was born in federal custody. At the time of his birth, he was placed in Sherry's care by the US Marshall's office. Sherry reported that approximately ten (10) days later, Father claimed the baby was his and that he wanted placement of him. Sherry alleged he only wants the Child(ren) for child support and a greater tax return.

Sherry shared Kristi's concern regarding Father's girlfriend Diana. She worried that Diana is involved in sex trafficking. Given the different women presented, the one they met at 5 Guys and the woman they saw in the picture, she is concerned regarding who Father has around the Children. She reported she did find an ID in Father's belongings confirming the Diana they met at 5 Guys is actually Laura Diana Lopez.

Sherry does not believe Father can maintain employment and housing suitable to care for the Children. She does not know his current residence. Her last contact with Father was April 10, 2023, when she asked him to return some of items she purchased for the Children.

Her only contact with the Children was a photograph submitted by Father at her request. She indicated that Father provided a photograph of the Children with "Diana" and Diana's family. She indicated Serena had a bruised eye in the photographs and Leo appeared scared. She could not identify the other individuals in the photograph.

Sherry believes Father is mentally ill, describing him as schizophrenic. She indicated he is manipulated and a habitual liar. She referred to one such lie being his accusation that his oldest sister is in an active sexual relationship with Father's father. She stated this is the type of harmful lies he creates.

Sherry believes Mother should have telephonic visitation with the Children. She agreed that Father should not have any parenting time or contact with the Children until he undergoes sex offender rehabilitation.

VANDERBURGH PROSECUTOR:

This GAL spoke with Vanderburgh County Deputy Prosecutor David Whitehead. His response is below:

Hey Jillian,

I just spoke with Doug Brown. I have spoken to Joseph Eslinger's mother before and she is aware there is no jurisdiction for juvenile court due to Joseph's current age. It is not a waivable offense either based on the information we have.

Joseph's mother has said that the abuse continued until after Joseph turned 18. We told her to reach back out to the detective so he could re-interview the victim (or have the interview at Holly's House) so an amended report could be filed if needed. We have not received any amended report, so at this time we are not filing anything on the matter. If we do receive the amended report, it will just depend on what is on that report, Doug and Jeremy would review that and decide.

I do not have access to the video from Holly's House.

DETECTIVE BRANDON DEIG:

Detective Deig stated the initial report was made on November 23, 2022. A Holly's House interview was scheduled for late November. However, Madison canceled the interview, which "seemed odd", but was not unheard of. The next contact he had with the matter was March 24, 2023.

The investigation was submitted to the Vanderburgh Prosecutor's Office. It appears that all allegations arose when Father and Madison were minors. He would have to change his report for filing, which he could not do based on what was actually disclosed in the Holly's House interview.

He contacted DCS and Holly's House regarding a second interview. Holly's House and DCS did not want to re-interview as they would have to question Madison in depth regarding her recollections, the timing of the disclosure, and specific incidents.

Father spoke with Scott as well related to the allegations made against Father. The matter was referred to Terre Haute law enforcement. Vigo County does not intend to pursue a case against Father.

Det. Deig spoke to Father at his home. He observed the Children were present, eating breakfast. They appeared healthy and appropriately dressed. Father adamantly denied all allegations. He stated Father was frustrated, especially with Sherry, believing this was another attempt to take his Children.

At this time, the investigation is closed, and no charges are being filed.

MADISON ESLINGER:

Madison was interviewed September 26, 2023. She is a sophomore at Evansville Christian School (previously attending Signature School). She is an A student.

Madison stated that she made her initial disclosure against Joseph around January 2023, after the holidays. Her disclosure was made to her mother, Sherry. She was prompted to make the disclosure after seeing Joseph with the children and seeing how he treated his wife, Sara. She stated he would be verbally aggressive with Sara, starting arguments with her about anything. In her interview, she could not identify the last time she saw Joseph and Sara together; however, it was sometime before November of 2022. She also stated that Joseph did not understand that the "children aren't old enough to give him what he wants". When asked to clarify, Madison stated Joseph did not seem to know how to parent, yelling at the children when they were in trouble. She claimed that she heard Joseph tell Sherry that he would lock the children in closets to make the children clean the house. She never saw this behavior firsthand. She also expressed concerns for Serena based on Serena's age.

Madison stated she disclosed that Joseph had "sexually assaulted her". She initially told the GAL this started when she was around five (5) years old. She later stated the abuse started when she was three (3) years of age. She eventually stated she did not actually know her age at the start of the abuse. She stated the sexual abuse occurred until she was approximately nine (9) years of age. She could not recall the frequency or exact period of time when the abuse occurred. Her recollection was that it "happened a lot". She did not provide any examples of the actual abuse. When asked to clarify what she meant by sexual assault, she stated "molestation". She eventually stated that Joseph touched and kissed her. When asked if it was above clothes or under clothes, she responded "everywhere".

Madison stated this typically occurred when she would visit her father in Terre Haute on the weekends. Joseph lived with his father at the time. She stated that this would occur when her Father and two other sisters were present in the home. She stated she shared a room with her sister (now brother Scott). Joseph slept in a separate room, as did their older sister Brooke.

Joseph moved in with Sherry and Madison in November of 2014. Joseph lived in the home until attending college at USI. He would visit on the weekends; however, Madison states he did not want to spend much time with her. She would seek him out to play video games – he expressed minimal interest in time together.

Joseph and Sara lived with Sherry and Madison for approximately six (6) months after Leo was born. Despite living in the same house, Madison had little to no interactions with Joseph during that time. She stated the last contact she had with Joseph was February of 2023 when Joseph helped Sherry with her vehicle. Prior to that, she would see the Children a couple of times per month at Sherry's home.

Madison reported being in counseling, individual and group. She was participating in counseling prior to her disclosure to address her strained relationship with her father and self-harm. She did not disclose the sexual abuse to the counselor.

After Madison's disclosure, Sherry contacted DCS. Madison participated in a Holly's House interview. Based on the interview, DCS substantiated a report against Joseph. Joseph was interviewed by Indiana State Police Detective Brandon Deig. To date, no charges have been filed.

In discussing the status of the criminal investigation, the GAL mentioned the request for the second Holly's House interview (brought up by Sherry in the GAL's first meeting with her). Sherry expressed confusion at needing a second Holly's House interview – despite being the party to inform the GAL of the prosecutor requesting a second interview.

CHILDREN:

The GAL observed the Children in Father's home. The GAL spoke with the Children, but due to their ages they were not able to fully understand the interview. All three children appeared clean, appropriately dressed, and healthy. None of the children had any marks of bruises on them. The Children demonstrated appropriate interactions with Father and each other. The children were observed snacking and playing in the home while Leo worked on letters. Serena and Leo had appropriate beds. Father was in the process of purchasing an age-appropriate bed for Jonah as his last bed broke. The Children engaged with the GAL (Jonah being limited due to his age).

The GAL did not observe any concerns with the Children.

DCS RECORDS:

From March 2019 to March 2022, fourteen reports were called in against Sara and/or Joseph Eslinger.

The initial reports: 2019 – Fall of 2022 alleged Sara as the primary concern. Specifically, her mental health was untreated, resulting in an unclean home, lack of supervision, etc. DCS offered her service through Southwestern Behavioral Health and Community Partners that seemed to alleviate DCS' concerns.

11 reports were called against Father between October 2022 through March 2023. The allegations included: sexual abuse, substance abuse, physical abuse, neglect, lack of supervision, etc.

During this period, Father submitted to 3 random drug screens; the children were evaluated by their pediatrician 2 times, participated in 1 PEDS assessment, and were seen by law enforcement officers on 5 separate occasions for welfare checks.

Father's screens were negative. The Children's pediatrician found no signs of physical abuse, and law enforcement reported no concerns for the Children in Father's care – they did note possible developmental delays in the Children.

DCS worked with Father on appropriate discipline and offered him services through Community Partners that he took.

The DCS report concerning the allegations of sexual abuse was substantiated against Father. DCS' substantiation arose from the Holly's House interview.

TEXT MESSAGES:

In reviewing the text messages, it is clear that Sherry was involved in Mother and Father's communication and relationship. She also provided both parents childcare at various times.

In the text messages, Sherry does not express any of the safety concerns that she disclosed to the GAL. Rather, most of the messages were scheduling childcare, payment of groceries/expenses, and discussions about Sara and Joseph's separation.

Sherry seemed to offer support to Mother and Father, switching sides between the parties at various times. She regularly offered significant support to Mother, including allowing her to move in with Sherry (this was not disclosed to the GAL during Sherry's interview), paying for groceries, and reprimanding Father, etc., despite Father's requests for her to remove herself from the situation.

Sherry's involvement with the Children significantly lessened in January before being completely ended in April of 2023.

CONCERNS:

This is an incredibly contentious case with significant conflict between the parties. DCS observed an initial lack of parenting skills in Mother and Father. However, both parties benefited and cooperated with community resources to improve and resolve the parenting concerns. This included working with Southwestern Behavioral and Community Partners. The allegations of sexual abuse are concerning – as are the timing of the disclosure and inconsistencies in the statements of Sherry and Madison.

Father's family has made 10 DCS reports against him over seven (7) months, one report being made by a neighbor. Of the 11 reports, 10 were unsubstantiated. In the course of the investigations, Father had numerous medical personnel, family case managers, and law enforcement officers make contact with the Children. None of the professionals expressed concerns for the Children in Father's care.

Regarding the allegation of sexual abuse, at this point, it remains an allegation. Both Vanderburgh County and Vigo County prosecutors' offices and the Department of Child Services declined pursuing a case against Father. While this GAL does not dismiss the seriousness of the allegations – there has been no evidence that Father has engaged in any sexual conduct of any kind towards the Children.

RECOMMENDATION:

It is the GAL's recommendation that:

1. The guardianship be denied;
2. The custody and parenting time be established between the Mother and Father in the dissolution proceedings.

Respectfully submitted,

/s/Jillian N. Kratochvil

Jillian N. Kratochvil, IN #32039-30

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CERTIFICATE OF SERVICE

I hereby acknowledge that I complied with the service requirements under Trial Rule 86 by either E-service to the registered user electronically or pursuant to Trial Rules 4 and 5 (sheriff service, certified mail or regular US mail) to all non-registered parties.

This 3rd day of October 2023.

/s/Jillian N. Kratochvil

Jillian N. Kratochvil, IN #32039-30

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